



2025 ASSEMBLY BILL 1090

February 26, 2026 - Introduced by Representatives TAYLOR, BROWN, DESANTO, GOODWIN, RIVERA-WAGNER, SINICKI and STUBBS. Referred to Committee on Ways and Means.

1 **AN ACT** *to amend* 16.03 (2) (a) and 71.10 (4) (i); *to create* 20.835 (2) (fm) and
2 71.07 (8d) of the statutes; **relating to:** the statewide policy regarding
3 homelessness, an income tax credit for property taxes paid by senior citizens,
4 and making an appropriation.

Analysis by the Legislative Reference Bureau

Senior citizen tax credit

This bill creates a refundable income tax credit equal to the amount of the property taxes paid on the principal dwelling of an individual who is at least 65 years of age that exceeds the amount of the property taxes paid on the individual's principal dwelling in the previous year. An individual who claims a credit under the bill may not claim the school property tax credit, the veterans and surviving spouses property tax credit, the farmland preservation credit, or the homestead credit.

Because the credit is refundable, if the amount of the claim for which a claimant is eligible exceeds the claimant's tax liability, the difference will be paid to the claimant by check.

Statewide policy to prevent homelessness

Under current law, the Interagency Council on Homelessness in the Department of Administration must establish and periodically review a statewide

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policy with the purpose of preventing and ending homelessness in this state. Under the bill, the statewide policy must include specific strategies for preventing and ending homelessness among older adults in this state.

For further information see the state fiscal estimate, which will be printed as an appendix to this bill.

The people of the state of Wisconsin, represented in senate and assembly, do enact as follows:

SECTION 1. 16.03 (2) (a) of the statutes is amended to read:

16.03 (2) (a) Establish and periodically review a statewide policy with the purpose of preventing and ending homelessness in this state. The statewide policy shall include specific strategies for preventing and ending homelessness among older adults in this state.

SECTION 2. 20.835 (2) (fm) of the statutes is created to read:

20.835 (2) (fm) *Senior citizen property tax credit.* A sum sufficient to make the payments under s. 71.07 (8d).

SECTION 3. 71.07 (8d) of the statutes is created to read:

71.07 (8d) SENIOR CITIZEN PROPERTY TAX CREDIT. (a) *Definitions.* In this subsection:

1. "Claimant" means an individual who has reached age 65 by December 31 of the taxable year to which the claim relates or an individual and his or her spouse filing a joint return, either of whom has reached age 65 by December 31 of the taxable year to which the claim relates, and who files a claim under this subsection.

2. "Principal dwelling" means a dwelling that is owned and used by the claimant as a primary dwelling for the entire taxable year for which the credit under this subsection is claimed and the land surrounding it, not exceeding one acre, for use of the dwelling as a primary dwelling, including a part of a

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1 multidwelling or multipurpose building and a part of the land upon which it is built
2 that is used as the claimant's primary dwelling.

3 3. "Property taxes" means the property taxes, exclusive of special
4 assessments, delinquent interest, and charges for service, paid by a claimant, and
5 the claimant's spouse if filing a joint return, levied on the claimant's principal
6 dwelling in this state less any property taxes levied that are properly included as a
7 trade or business expense under section 162 of the Internal Revenue Code. If the
8 principal dwelling on which the taxes were paid is owned by 2 or more individuals
9 or entities as joint tenants or tenants in common or is owned by spouses as marital
10 property, "property taxes" means that part of the property taxes paid that reflects
11 the ownership percentage of the claimant, plus the ownership percentage of the
12 claimant's spouse for spouses who file a joint return. "Property taxes" includes
13 monthly municipal permit fees with respect to a principal dwelling imposed under
14 s. 66.0435 (3) (c).

15 (b) *Filing claims.* For taxable years beginning after December 31, 2025, and
16 subject to the limitations provided in this subsection, a claimant may claim as a
17 credit against the tax imposed under s. 71.02, an amount equal to the amount of the
18 property taxes the claimant paid in the taxable year on the claimant's principal
19 dwelling in excess of the amount of the property taxes the claimant paid in the
20 immediately preceding taxable year on the claimant's principal dwelling. If the
21 allowable amount of the claim exceeds the income taxes otherwise due on the
22 claimant's income, the amount of the claim not used as an offset against those taxes
23 shall be certified by the department of revenue to the department of administration

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1 for payment to the claimant by check, share draft, or other draft from the
2 appropriation under s. 20.835 (2) (fm).

3 (c) *Limitations.* 1. a. No credit may be allowed under this subsection if the
4 claimant or the claimant's spouse files a claim under sub. (6e) that relates to the
5 same taxable year for which a claim is made under this subsection.

6 b. No credit may be allowed under this subsection for an amount of property
7 taxes claimed as a credit under sub. (9) or subch. VIII, or both, that relates to the
8 same taxable year for which a claim is made under this subsection.

9 c. No credit may be allowed under this subsection for an amount of property
10 taxes claimed as a credit under subch. IX that relates to the same taxable year for
11 which a claim is made under this subsection.

12 2. Except as provided in subd. 4., only one claimant per household per taxable
13 year may claim a credit under this subsection.

14 3. No credit may be allowed under this subsection for property taxes that the
15 claimant pays on his or her principal dwelling that is leased to the claimant.

16 4. If married persons who are eligible to claim the credit under this subsection
17 file separate returns, each spouse may claim a credit under this subsection on the
18 basis of his or her respective ownership interest in the principal dwelling.

19 5. No credit may be allowed under this subsection unless it is claimed within
20 the time period under s. 71.75 (2).

21 6. Part-year residents and nonresidents of this state are not eligible for the
22 credit under this subsection.

23 (d) *Administration.* 1. In administering this subsection, the department of
24 revenue shall make available suitable forms with instructions for claimants,

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1 including a form that may be included with, or as a part of, the individual income
2 tax form.

3 2. Subsection (9e) (d), to the extent that it applies to the credit under that
4 subsection, applies to the credit under this subsection.

5 **SECTION 4.** 71.10 (4) (i) of the statutes, as affected by 2025 Wisconsin Act 15,
6 is amended to read:

7 71.10 (4) (i) The total of claim of right credit under s. 71.07 (1), farmland
8 preservation credit under ss. 71.57 to 71.61, farmland preservation credit, 2010 and
9 beyond under s. 71.613, homestead credit under subch. VIII, jobs tax credit under s.
10 71.07 (3q), business development credit under s. 71.07 (3y), research credit under s.
11 71.07 (4k) (e) 2. a., film production services credit under s. 71.07 (5f) (b) 2., veterans
12 and surviving spouses property tax credit under s. 71.07 (6e), senior citizen
13 property tax credit under s. 71.07 (8d), enterprise zone jobs credit under s. 71.07
14 (3w), electronics and information technology manufacturing zone credit under s.
15 71.07 (3wm), earned income tax credit under s. 71.07 (9e), estimated tax payments
16 under s. 71.09, and taxes withheld under subch. X.

17 (END)